

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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VANESSA SCOTT, WILLIE FRENCH, VANESSA
SCOTT, Parent & Natural Guardian of Minor W.F.,

Plaintiff,

-against-

POLICE OFFICER BRETT WOODARD, Shield No.
27829, and POLICE OFFICERS JOHN DOE 1-10,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates KINGS
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 15, 2019

Yours, etc.

 /s

CAITLIN ROBIN, ESQ.
CAITLIN ROBIN & ASSOCIATES
PLLC.
Attorney for Plaintiff
30 Broad Street, Suite 702
New York, New York 10004
(646)-524-6026

TO: POLICE OFFICER BRETT WOODARD, Shield No. 27829, NYPD 73 Precinct, 1470
East New York Avenue, Brooklyn, NY 11212

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

VANESSA SCOTT, WILLIE FRENCH, VANESSA
SCOTT, Parent & Natural Guardian of Minor W.F.,

INDEX NO.:

VERIFIED COMPLAINT

Plaintiff,

-against-

JURY TRIAL DEMANDED

POLICE OFFICER BRETT WOODARD, Shield No.
27829, and POLICE OFFICERS JOHN DOE 1-10,

Defendants.

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Plaintiffs, Vanessa Scott, Willie French, and minor W.F., by their attorneys, Caitlin Robin & Associates, PLLC, as and for their Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution. On April 3, 2019, at approximately 5:00 a.m., plaintiffs were subjected to an unlawful stop, frisk, search, detention, and false imprisonment, while lawfully present inside their apartment at 222 Logan Street, in Brooklyn, New York. Plaintiffs spent approximately 20 hours unlawfully in police custody. Thereafter, the defendant police officers denied plaintiffs the right to a fair trial by forwarding false information to the District Attorney's Office. Plaintiffs were never officially charged with any crimes, but rather released with no charges after 20 hours of being detained. Plaintiffs were deprived of their constitutional rights when the individual defendants unlawfully stopped, questioned, frisked, searched, unlawfully arrested, and denied the plaintiffs the right to a fair trial in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff Vanessa Scott is a resident of the State of New York.

3. Plaintiff Willie French is a resident of the State of New York.

4. Plaintiff Minor W.F. is a resident of the State of New York.

5. POLICE OFFICER BRETT WOODARD, Shield No. 27829, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

6. On the date of the subject incident POLICE OFFICER BRETT WOODARD, Shield No. 27829, was assigned to the 73rd Precinct.

7. POLICE OFFICER BRETT WOODARD, Shield No. 27829, is being sued in his individual and official capacities.

8. POLICE OFFICER JOHN DOE 1-10, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained, managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

12. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

13. On April 3, 2019, at approximately 5:00 a.m., plaintiffs were lawfully inside their apartment located at 222 Logan Street, in Kings County, New York.

14. 222 Logan Street is a three bedroom apartment, with Plaintiff Vanessa Scott and Plaintiff Willie French in one bedroom, Plaintiff minor W.F., in another bedroom, and Plaintiff Vanessa Scott's other son, Lykeem French, in the third bedroom.

15. The defendant police officers broke down the door to the apartment, with guns out, scaring all of the occupants of the apartment.

16. Plaintiff Vanessa Scott was in the bathroom, completely naked, having just finished taking a shower.

17. Plaintiff Willie French was in one bedroom.

18. Plaintiff minor W.F. was in the second bedroom.

19. Non-party Lykeem Scott was in the third bedroom.

20. The Defendant Officers handcuffed all four occupants of the apartment, the three Plaintiffs and Lykeem Scott.

21. The Defendant Officers did not allow Plaintiff Vanessa Scott to get clothes for several minutes, exposing her naked body to all the Defendants.

22. The three Plaintiffs kept asking why they were being arrested and the officers would provide no reason.

23. At no time prior to being stopped by the officers did plaintiffs commit a crime or behave in a manner that gave the police officers a reasonable and objective basis to believe they had committed or were committing a crime.

24. The Defendant Officers searched Plaintiffs and found no contraband or anything illegal on them.

25. At no point in time did plaintiffs resist arrest in any way.

26. Defendant Officers placed Plaintiffs under arrest for no legal reason.

27. Defendants then drove Plaintiffs to the 73rd Precinct, where Plaintiffs were fingerprinted, photographed, and unlawfully detained in a holding cell.

28. After approximately twenty hours in police custody, all three plaintiffs were released directly from the 73rd Precinct.

29. The Defendant Officers falsely stated to the Kings County District Attorneys' Office that Plaintiff had committed the crime of Obstructing Governmental Administration despite knowing that they lacked a legal and factual basis to allege that Plaintiff committed any crime.

30. The King's County District Attorney's office declined to prosecute all three plaintiffs.

31. Some of the police officer defendants observed the violation of plaintiffs' rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, false arrest, denial of fair trial, and excessive force used against plaintiffs.

32. The unlawful stop, question, frisk, search, false arrest, false imprisonment, unlawful seizure, and excessive force against plaintiffs by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

33. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully set forth at length herein.

34. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, subjected to denial of his due process rights in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

35. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 34 with the same force and effect as if more fully set forth at length herein.

36. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiffs and, in fact, confined plaintiffs, and plaintiffs were conscious of the confinement. In addition, plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

37. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

38. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

39. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

40. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

41. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.

42. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiffs' freedom of movement through means intentionally applied.

43. The conduct of defendants in stopping, frisking, and searching, plaintiffs were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

44. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the United States Constitution.

45. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

46. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

47. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The illegal approach, pursuit, stop and search inside the plaintiffs, pockets, inside of the waistband of his pants and underneath his clothing employed by defendants, as well as the search of plaintiff who was naked herein terminated plaintiff's freedom of movement through means intentionally applied.

50. Defendants lacked probable cause to search plaintiffs.

51. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

54. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein

56. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

57. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

58. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

59. In withholding/creating false evidence against plaintiffs, and in providing/withholding information with respect thereto, defendants violated plaintiffs' constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

60. As a result of the foregoing, plaintiffs, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of their constitutional rights.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

63. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

64. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiffs. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiffs and violated plaintiffs' statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

66. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiffs and violated plaintiffs statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

67. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

70. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

71. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.

72. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

73. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

74. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

75. The defendants that did not physically touch plaintiffs, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiffs, whose constitutional rights were being violated in their presence by other officers.

76. Defendants failed to intervene to prevent the unlawful conduct described herein.

77. As a result of the foregoing, plaintiffs' liberty was restricted for an extended period of time, they were put in fear of their safety, and they were humiliated and subject to other physical constraints.

78. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York.

79. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

80. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

81. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Malicious Prosecution

82. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 81 with the same force and effect as if more fully set forth at length herein.

83. The acts and conduct of the defendants constitute malicious prosecution under the United States Constitution.

84. Defendants commenced and continued a criminal proceeding against plaintiffs.

85. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiffs and for each of the charges for which they were prosecuted.

86. The prosecution and criminal proceedings terminated in plaintiffs' favor on the aforementioned dates.

87. Plaintiffs were subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiffs' Fourth Amendment rights.

88. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the United States Constitution.

89. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

90. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

91. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiffs Vanessa Scott, Willie French, and W.F., demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
December 15, 2019

_____/s_____
CAITLIN ROBIN, ESQ.
CAITLIN ROBIN & ASSOCIATES
PLLC
Attorneys for Plaintiff
30 Broad Street, Suite 702
New York, New York 10004
(646)-524-6026

TO: POLICE OFFICER BRETT WOODARD, Shield No. 27829, NYPD 73 Precinct, 1470
East New York Avenue, Brooklyn, NY 11212

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **CAITLIN ROBIN & ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
December 15, 2019

_____/s_____
CAITLIN ROBIN, ESQ.